

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

COSCO SHIPPING LINES CO., LTD, *Respondent and Third-Party Complainant*

v.

SAMSUNG ELECTRONICS COMPANY, LTD.; SAMSUNG SDS
GLOBAL SCL ASIA PACIFIC PTE LTD.; AND SAMSUNG
ELECTRONICS LOGITECH COMPANY, LIMITED,
Third-Party Respondents.

DOCKET NO. 24-16

Served: August 08, 2025

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge.*

ORDER SETTING CONFERENCE ON DISCOVERY SCHEDULE AND PROTECTIVE ORDER

On August 7, 2025, the undersigned issued an Order on Respondent's Motion to Compel. Respondent's Motion to Compel sought an order finding that Complainant had failed to respond to discovery by July 18, 2025, and that Complainant waived the right to object to Respondent's discovery requests. The parties were admonished for their lack of communication regarding the discovery schedule and instructed to file an additional joint status report to avoid future confusion. The night of August 7, 2025, Respondent COSCO filed a Motion for Enlargement of Time to Complete Document Production ("MET"). The motion seeks a one-month enlargement of time for Respondent to complete production of documents, and specifically states that it is not seeking, but does not oppose, a similar enlargement of time for Complainant SEA, or a similar extension of all dates in the discovery schedule. MET at n. 1. As good cause for the enlargement of time for Respondent, COSCO states that it produced 6,000 pages of documents on July 18, 2025, and responded to SEA's 21 interrogatories, but it now "needs additional time to search its records in various locales, as well as process, review and produce responsive, non-privileged documents." *Id.* at 2. In addition, COSCO states it can't produce confidential business documents until SEA and the Third-Party Respondents agree to a protective order. *Id.* Finally, Respondent asserts that it conferred with SEA and SEA did not take a position on the motion.

On August 8, 2025, Complainant SEA filed a Response to Respondent's Motion for Enlargement of Time to Complete Document Production ("Response"). While it continues to

take no position on the extension request, SEA also states that “upon...review of footnote 1, SEA notes that COSCO takes the curious position that any extension of the August 14, 2025, final document production deadline would be unilateral in COSCO’s favor. There is no other joint deadline in this case that is unilaterally applied, and doing now,...would be inequitable...” SEA adds as consideration of the disparity inherent in the motion for a unilateral enlargement of time that it produced 350,000 pages of documents on August 7, 2025, and COSCO has produced only 6,000 pages for which the password had expired and was recently renewed, so the bulk of COSCO’s production would occur shortly before fact depositions are to be completed based on the current schedule.

It appears based on SEA’s response to the motion that it did not expect COSCO’s motion for an enlargement of time for document production to apply only to COSCO. This motion and response to the motion, much like the motion to compel and response to that motion, highlights the continued lack of communication between the parties. In an effort to stem this miscommunication and develop a schedule by which the parties can abide, the parties are **ORDERED** to attend a video conference on Tuesday August 12, 2025, at 1:00 p.m. A Teams link will be sent to invite the parties. Only one representative for each party need attend and that representative should be identified by email to Judges@fmc.gov no later than 11:00 a.m., August 11, 2025. Counsel should be prepared to discuss the status of discovery, including the anticipated volume of outstanding document production, whether modifications to the discovery schedule are necessary and why, and the position of each party regarding a protective order. Counsel attending the conference are expected to have full authority to act on any issues raised or decisions reached during the conference, and if they do not, a corporate representative with authority to bind a party must also attend.



Linda S. Harris Crovella
Administrative Law Judge